

| Version # | Date      | Details of change                  | Page no. |
|-----------|-----------|------------------------------------|----------|
| 2         | June 2024 | CPD slide replace with new version | 6        |
|           |           |                                    |          |

# Ethics, compliance and professionalism

## Learning objective:

15. Understand ethics, compliance and professionalism as the ability to work consistently in a moral, legal and socially responsible manner.



15a) Understand the importance of continuing professional development, which should cover both knowledge, skills and behaviours, and the individual's role in identifying and addressing their own competence gaps.



# Considerations for project professionals

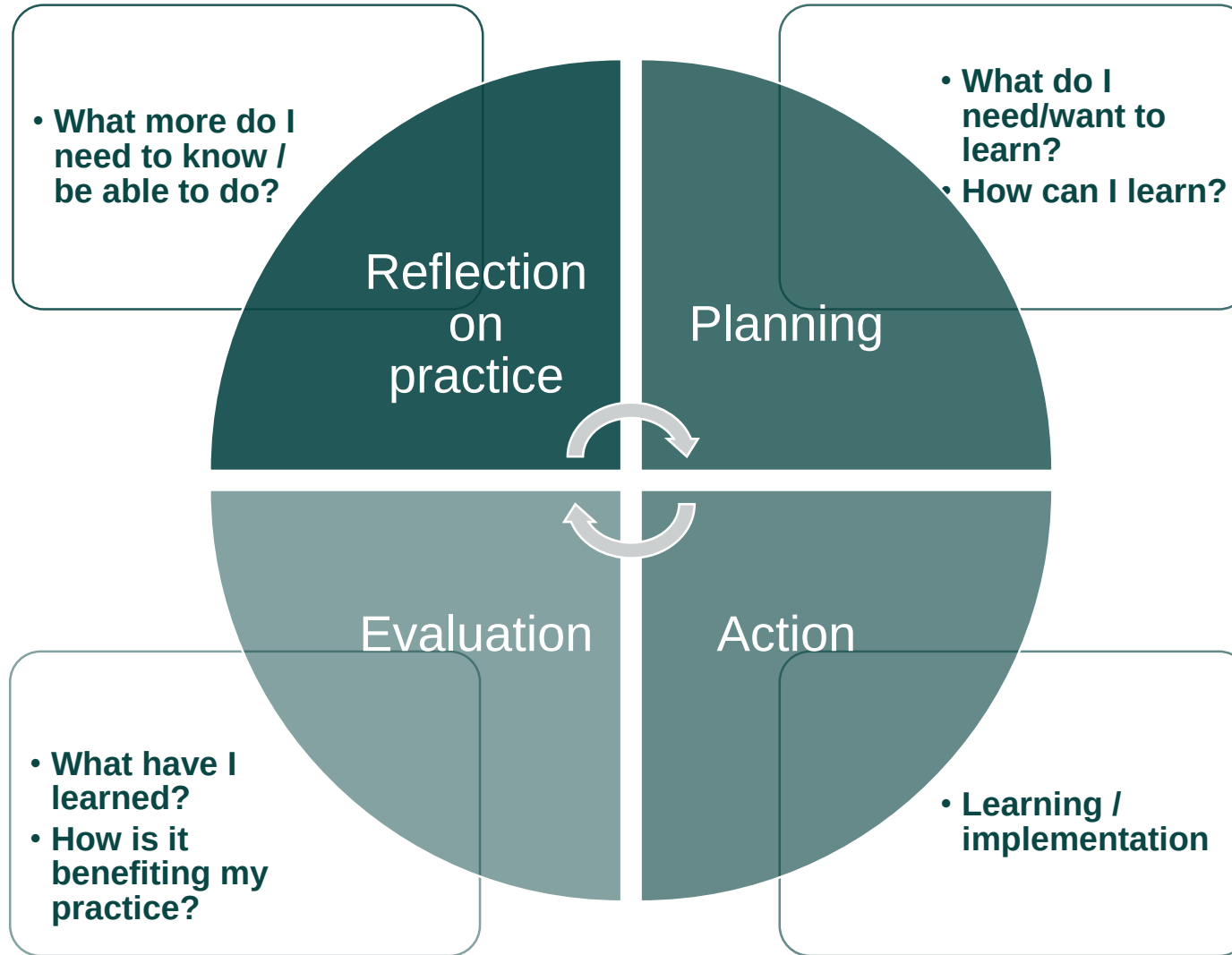
Consider:

- Taking responsibility for identifying own competence gaps and pursuing learning opportunities to bridge gaps with the support from your employer.
- Different approaches to learning; they can vary from informal on-the-job learning and coaching, to formal courses and qualifications.
- Being a 'reflective practitioner', which means you take the time to actively reflect on experiences and engage in the process of continuous learning and development from those experiences.
- Using a wide range of resources and a variety of informal and formal approaches to achieve more effective learning.

Informal approaches that are great for sharing and learning include:

- academic journals
- articles in professional magazines
- conferences
- blogs and podcasts

# CPD cycle



Source: *APM Body of Knowledge*, 7th edition  
Figure 'CPD cycle' adapted from *Continuing Professional Development* by Andrew L. Friedman, Routledge, 2012, figure 1.2, copyright © Andrew L. Friedman, 2012. Reproduced with permission of Routledge via Copyright Clearance Center.

# Importance of CPD

The project profession is navigated by a set of standards that articulates a defined level of technical knowledge, professional practice and ethical behaviour.

Ongoing continuing professional development (CPD) of your own competence enables you to demonstrate capability of those standards and the desire to further develop them promotes and supports a trusted profession.

**In order to make sure that you're behaving in a consistent ethical way, it's important to consider:**

- The impact ethics has on change activity.
- How to make sure that you're acting within the limits of your own competence and authority.
- Professional codes of conduct.
- When to seek specialist advice to understand legal and contextual obligations.
- The cultures, values and policies that the project is operating within.
- The impact regulation might have on project governance and processes.

A decorative wavy line in yellow and light green starts from the left edge of the slide and curves downwards towards the right, ending near the folder icon.

15b) Knowledge of the sources of specialist advice and standards that need to be adhered to.

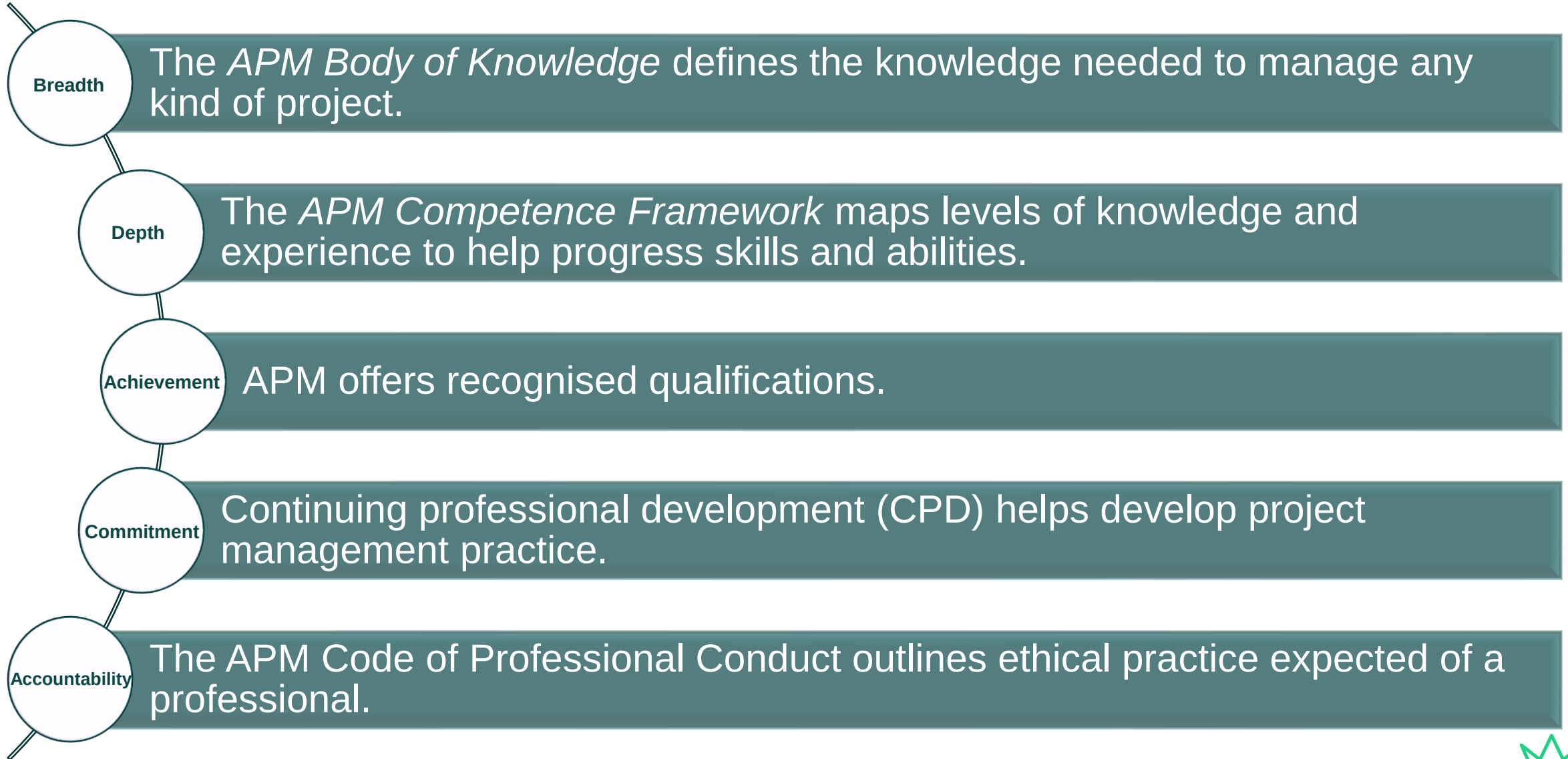


# Sources of specialist advice and standards

- Trust and respect are vital to anyone who wants to be regarded as a professional.
- Trust is gained through consistently working in a moral, legal and socially responsible manner in accordance with organisational and professional codes of conduct.
- Professionalism is a demonstratable awareness and application of competences and qualities, including knowledge and appropriate skills.
- The APM FIVE Dimensions of Professionalism provides a framework to set standards and guide project professionals.
- Where standards for ethical conduct are not being met, there is a duty as part of professional standards to report any wrongdoing.
- Everybody has a responsibility to 'speak up'; organisations are required to have a policy and process to enable individuals to do so.



# APM FIVE dimensions of professionalism





15c) Understand the impact of the legal and regulatory landscape on projects (such as the impact on working conditions, risk management, governance and sustainability).



# Legal and regulatory landscape

- Projects operate within a legal and regulatory framework. This framework depends on the industry and country in which the work is being delivered.
- Where the work is being delivered in different geographical locations, there may be conflicting regulations and standards to consider. The relevant governance structure decides which standards to align with.
- Project professionals are responsible for understanding the regulatory environment they are operating in; if in doubt, seek advice.
- Regulations generally fall into two categories:
  - Those with specific instructions that must be taken.
  - Those that help employers set procedures where they can then decide how they control risks identified.
- Failure to comply with regulations can result in advised corrective action through to custodial sentences for both individuals and the organisation.



Source: APM Body of Knowledge, 7th edition

## Examples of 'Laws & Regs' relevant to Projects

Also, for example – Contract Law.  
Environmental laws/regs, Specific Industry  
regulations, also Procurement policies,  
finance rules etc within organisations

| Law                            | Explanation                                                                                                                                                                                                                |
|--------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Employment Contracts           | Written statement setting forth the terms and conditions of the employment.                                                                                                                                                |
| Minimum wage and working hours | Varies per age group up to 21. Adult employees may not be required to work in excess of 48 hours per week. Employees entitled to 5.6 weeks paid holiday time per year. Part-time workers - pro-rata amount of holiday pay. |
| Discrimination Laws            | Prohibiting discrimination and harassment based upon characteristics such as age, disability, gender, etc.                                                                                                                 |
| Maternity and paternity leave  | Both sexes entitled to paid or unpaid leave.                                                                                                                                                                               |
| Terminations                   | Covers conditions of termination by mutual agreement or by retirement or redundancy.                                                                                                                                       |
| Redundancies                   | Long-term employees entitled to compensation from their employers in the event of redundancy.                                                                                                                              |
| Data Protection (GDPR)         | Personal data obtained only for specified lawful purposes.                                                                                                                                                                 |
| Freedom of Information         | Providing public access to information held by public authorities.                                                                                                                                                         |
| Health & Safety                | Providing a safe place of work for those at work and impacted by it.                                                                                                                                                       |



# Several project processes are influenced by the regulatory environment

